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NOTE

From:	Permanent Representatives Committee (Part 1)
To:	Council
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Subject:	Draft Council conclusions on "Underpinning the European space renaissance: orientations and future challenges" - <i>Adoption</i>

1. Following the Conclusions adopted by the Competitiveness Council last 26 May 2014¹, the Italian Presidency indicated as one of its priorities to continue the process for identification of possible solutions regarding the relations and cooperation between the EU and ESA.
2. At the same time the Commission has been invited to prepare and issue an impact assessment to consider in particular the option for amending the current EU-ESA Framework Agreement (so-called option 2) and for creating a "EU pillar" inside ESA (so-called option 3), as well as to include improvements on the basis of the existing EU-ESA Framework Agreement.

¹ doc. 10289/14

3. Taking into account that this analysis would be completed in 2015, the Presidency decided to propose a set of conclusions on a broader perspective, bringing together efforts of EU, ESA and Member States, aiming at the future development of European programmes and infrastructures to further support the Union's policies and benefit the European citizens.
 4. The draft Council conclusions were discussed in the Space Working Party in September, October and November 2014. Discussions resulted in general consensus on the text with only few issues remaining open.
 5. The Permanent Representatives Committee solved all the issues remaining open and agreed on the text as set out in Annex to this document.
 6. The Council ("Competitiveness"), at its session on 4-5 December 2014, is therefore called upon to adopt the conclusions.
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DRAFT COUNCIL CONCLUSIONS

"Underpinning the European space renaissance: orientations and future challenges"

THE COUNCIL OF THE EUROPEAN UNION

RECALLING that the Treaty on the Functioning of the European Union (TFEU)² establishes an EU competence in space;

HAVING REGARD to the Framework Agreement between the Union and the European Space Agency (ESA)³;

HAVING REGARD to its resolutions and orientations adopted and those of the "Space Council" notably those defining the objectives and priority areas of the European Space Policy the contribution of Space to innovation and competitiveness in Europe, as well as the global challenges, taking full benefit of European space systems⁴; and WELCOMING the progress achieved by the Commission and ESA in the implementation of the European Space Policy;

HAVING REGARD to the Council Conclusions on "Towards a shared EU-ESA vision for space fostering competitiveness" of 26 May 2014⁵, in particular the preamble as well as point 12 thereof;

² In particular Articles 4 and 189

³ OJ L 261 of 6.8.2004, p. 64.

⁴ doc. 10037/07, 13569/08, 10500/09, 16864/10

⁵ doc. 10289/14

RECALLING the European Council Conclusions⁶ of 23 December 2013 which, while remaining committed to delivering key capabilities and addressing critical shortfalls through concrete projects by Member States, supported by the European Defence Agency (EDA), welcomed the preparations for the next generation of Governmental Satellite Communication (GOVSATCOM) through close cooperation between the Member States, the Commission and ESA; and asked for a users' group to be set up in 2014;

TAKING NOTE of the Commission's report "A new deal for European defence - Implementation Roadmap for Communication COM (2013) 542; Towards a more competitive and efficient defence and security sector"⁷;

[ACKNOWLEDGING the outcome of the ESA Council at ministerial level, held in Luxembourg on 2nd December 2014, and in particular the resolutions on ESA evolution.]

Implementing and Exploiting Union Space Programmes

1. RECOGNISES the progress made with the implementation of the European Space Policy, in particular with the entry into force of the European Satellite Navigation Systems and Programmes (European GNSS), Copernicus and Horizon 2020 programmes, the Space Surveillance and Tracking (SST) Support Framework and UNDERLINES that their successful implementation constitutes a priority.

⁶ EUCO 217/13

⁷ doc. 11358/14

2. RECALLS that the EU GNSS and Copernicus programmes are expected to create substantial European market opportunities, in particular for European industry and SMEs, through the development of value-added downstream services and applications, which require continuous and sustained access to data. UNDERLINES that this growth should be complemented and supported by the Union through the development of best practices, standards in relevant areas, as well as appropriate measures, with a view to ensuring the widespread uptake of Union space programmes in as many sectorial policy areas as possible, thus improving the quality of life for the European citizens.
3. RECOGNISES the unique contribution of space programmes which, through their global observation capacity and long-term coverage, provide the scientific community and other users with series of data requested for research into medium-long term weather forecast and climate change, while complementing other observation and measurement tools and RECALLS the need for continuous and long-term observations from space, in order to provide high quality climate records. ACKNOWLEDGES the significant progress made in meteorology through the EUMETSAT-ESA cooperation in particular for the development of next generation Meteorological Satellite Observation systems and associated modeling and forecasting capacities which are expected to ensure European leadership in the global context. In this regard UNDERLINES the importance of services seamlessly integrating navigation, observation and communications space systems as well as their improved integration with ground infrastructure, to ensure monitoring and forecasting of the space and Earth environment including activities from now-casting to long-range and climatic forecasting, in support to the development and implementation of appropriate mitigation and adaptation measures. In addition, HIGHLIGHTS that, in the context of the Union policy demand for independent access to information and the creation of a European digital single market, space-based solutions could play an important role.

Long-term vision and policy

4. STRESSES that an ambitious long-term European space vision among the EU, ESA, their respective Member States and other relevant European actors should allow: responding to public policy objectives and user needs; enabling new economic growth and job creation in Europe; supporting world-class scientific progress; as well as securing the European capability to conceive, develop, launch, operate and exploit space systems at competitive conditions.
5. Given the long development cycle times peculiar to the space sector and the complexity of the decision-making processes, CONSIDERS that, while consolidating ongoing space programmes, the time is ripe to start reflecting on and preparing future initiatives by the Union in its fields of competence, in order to further enable and foster its sectorial policies.
6. INVITES, therefore, the Commission, on the basis of the results already achieved, in collaboration with the ESA Director General (ESA DG), to review, in consultation with Member States and other relevant actors, the European Space Policy and to identify to what extent it may require to be updated, having due regard to TFEU and ESA Convention provisions. Hence, INVITES the Commission to seek the emergence of a long-term vision shared by Member States and ESA, which will meet the long-term needs of European users, particularly in EU and national policies, taking into account the orientations provided hereto and which can be used by all actors as a planning tool for major space activities in Europe.

7. [NOTES the resolution on ESA evolution adopted at the ESA Council at ministerial level on 2 December 2014;] INVITES the Commission to make progress, in cooperation with ESA DG, on the ongoing assessments of the institutional relations between the EU and ESA with a view to proposing further improvements for a reliable and sustainable partnership between the EU and ESA, which would facilitate implementation of the European Space Policy and its potential evolution, taking stock of the lessons learnt from the ongoing Union space programmes.

Main emerging priorities

8. RECOGNISES the significant potential for growth and jobs stemming from the exploitation of space-based technologies and systems through the development of downstream applications and therefore, URGES the Commission to take action in exploiting their potential across all relevant space programmes.
9. UNDERLINES the need to continue pursuing synergies in space, security, and defence activities, where appropriate; WELCOMES current collaboration among the Commission, the High Representative of the Union for Foreign Affairs and Security Policy, assisted by European External Action Service (EEAS), as well as EDA and ESA to fulfill this goal within their respective competences and STRESSES the importance of involving Member States in a structured coordination in space and security. RECOGNISES that Satellite Communications is a unique capability which can ensure long-distance communications and broadcasting also in remote areas. Given the nature of security activities, bearing in mind that most security capabilities are owned and operated by Member States, NOTES the growing demand for GOVSATCOM and therefore UNDERLINES the importance of investigating on potential forms of collaboration with Member States, with the foreseeable intent to resort to their GOVSATCOM assets to fulfil EU operational requirements.

10. WELCOMES initiatives to identify user requirements regarding governmental satellite communications by the Commission (on civilian user needs) and EDA (on military user needs); INVITES them to report in 2015 on their findings; UNDERLINES the need to avoid fragmentation of demand and to foster civil-military synergies for the preparation of the next generation of Governmental Satellite Communication through close cooperation among Member States, EDA, the Commission and ESA.
11. WELCOMES the Commission's objective to integrate Remotely Piloted Aircraft Systems (RPAS) gradually into European airspace and NOTES that these developments represent a potential opportunity to foster job creation and a source for innovation, technological independence and economic growth. RECOGNISES the importance and potential of space-based services for efficient air traffic management. INVITES Member States and other relevant European actors to pursue integration of Space and Aerospace services and technologies to the use of RPAS in a safe, secure and sustainable manner.
12. ACKNOWLEDGES the importance of promoting the growth of the European small satellites industrial capabilities, while recognising their potential to allow rapid and affordable access to space, in particular with regard to testing or validating new concepts and technologies in orbit.
13. WELCOMES the Decision establishing SST support framework⁸ which sets the foundations for the protection of Union space systems and REAFFIRMS the need for securing an appropriate level of European autonomy in SST activities based on Member States assets and resources and taking into account the European added value.

⁸ OJ L 158 of 27.05.2014, p. 227.

14. UNDERLINES the strategic importance of independent, reliable and cost effective access to space at affordable conditions for the EU, ESA and their respective Member States, based on the availability of European competitive world-class launch systems and operational capacities, including the European spaceport and other relevant facilities both within and outside Europe, and the technologies which are critical to their development and production.
15. EMPHASISES equally the importance of research and innovation for the competitiveness of industry and the need for a consolidated approach for the development of critical technologies, for which dependency of European industry on international suppliers should be limited, at cost-effective and affordable conditions in order to achieve the optimal balance between technological independence, strategic cooperation with international partners and reliance on market forces.
16. INVITES the Commission to examine the political, societal and industrial context for space taking stock of the experience gained in the Union space programmes [and the outcome of the ESA Council meeting at ministerial level on 2 December 2014]; to explore with Member States and ESA the possibilities for sustainable institutional markets for critical technologies and critical systems, including launchers; and to present an action plan, taking into account security aspects both at European and global scale, and considering, inter alia, the use of innovative procurement approaches, thus underpinning European capacity building and non-dependence.
17. UNDERLINES that Horizon 2020 could support these emerging priorities and, since space research has long timescales necessitating a clear roadmap for investment decisions, CALLS on the Commission, ESA and Members States to coordinate roadmaps for future research and innovation activities, including critical technologies.

Space exploration and science

18. WELCOMES the coordination mechanism for space exploration through the International Space Exploration Conference as an appropriate way forward; RECALLS that space exploration is a political endeavour and a grand challenge; UNDERLINES its value for inspiring young Europeans to choose a career in science and technology, as well as the need for developing a long-term strategy taking into account the global coordination of the major powers' plans for human and robotic exploration as well as associated effort, capacities and priorities.
19. STRESSES the goal of maintaining a leading space science capacity, keeping the pioneering momentum, which can ensure that Europe remains at the forefront of new discoveries and challenging projects, as well as achieving a better understanding of fundamental questions regarding the Universe, our Solar System, the planet Earth and its environment; RECOGNISES the importance of research in space which, coupled to terrestrial research programmes, allows finding solutions to health problems and driving the identification of new ideas and opportunities for the future thus enabling the fruitful development of the technologies and infrastructures to serve Europe.

Next steps

20. INVITES the Commission to inform the Council and the European Parliament, by 2016, on the progress made with regard to these conclusions with a view to providing an input for the mid-term review of the current Multiannual Financial Framework for all space-related aspects through a comprehensive, collaborative and forward-looking approach.